



P O S H P O L I C Y

Prevention of Sexual Harassment at the Workplace

Awareness & Empowerment Training

Sexual Harassment of Women at Workplace (Prevention, Prohibition & Redressal) Act, 2013

What is POSH & Why It Matters



WHAT IS POSH?

POSH stands for the **Prevention of Sexual Harassment** Act — a law enacted by the Government of India in 2013 to protect women from sexual harassment at the workplace.

It ensures every woman has the right to work in a safe, respectful, and dignified environment.



WHY IT IS IMPORTANT

- ◆ Every woman deserves respect at work
- ◆ Harassment affects health, confidence & productivity
- ◆ POSH gives you a legal voice and protection
- ◆ Employers are legally bound to act
- ◆ Creates a positive, safe work culture for all

The Law That Protects You

The POSH Act (2013) — Sexual Harassment of Women at Workplace (Prevention, Prohibition & Redressal) Act

Applicable to: ALL workplaces — factories, offices, shops, construction sites, homes, NGOs, hospitals, transport, events

Applies to: All women — permanent, temporary, contractual, trainee, intern, visitor



Right to Complain

You can file a complaint within 3 months of the incident (extendable)



Right to Privacy

Your identity and complaint details are fully confidential by law



Right to Protection

No punishment, transfer, or victimization for filing a complaint

Recognizing 4 Types of Harassment



VERBAL

1. Passing sexual comments or jokes
2. Asking personal/intimate questions
3. Making remarks about someone's body
4. Threatening in exchange for favors



NON-VERBAL

1. Staring or winking repeatedly
2. Sending inappropriate pictures/videos
3. Making obscene hand gestures
4. Displaying sexual posters or objects



PHYSICAL

1. Unwanted touching
2. Blocking someone's path intentionally
3. Unwanted hugging or kissing
4. Any form of physical assault



DIGITAL

1. Sending indecent messages/emails
2. Sharing intimate images without consent
3. Inappropriate calls or video messages

Recognizing Harassment in Everyday Situations

Factory Floor

Priya's supervisor often stands unnecessarily close to her while explaining tasks and touches her shoulder repeatedly. She feels uncomfortable but is afraid to speak up.

 **Unwanted physical contact — This is harassment.**

Office Setting

Kavita receives WhatsApp messages from a male colleague late at night containing jokes with sexual undertones. He says 'just sharing for fun.'

 **Digital harassment — Unwanted messages are not 'just fun.'**

Work Travel

Meena is on an official trip with her manager, who comments on her clothes and suggests sharing a room to 'save costs.'

 **Verbal harassment + coercion — Workplace law still applies during travel.**

Company Event

During a company party, Anita's senior colleague makes a comment about her appearance in front of others. When she objects, he says 'Why are you so serious?'

 **Public harassment — Location doesn't matter; behavior does.**

Myths We Must Break



"It was just a joke!"

Humor that makes someone uncomfortable is not funny — it is harassment. Intent does not matter; impact does.



"She didn't say no, so it was okay."

Silence is NOT consent. Fear, embarrassment, or power imbalance may prevent someone from speaking up.



"I'm her senior, it's just banter."

Abuse of position or authority makes harassment even more serious under the law. Power does not give license.

Remember: Every person deserves to work with dignity and respect — no exceptions.

Where Can It Happen?

Harassment Has No Fixed Location



Factory / Shop Floor

During work hours, near machines, breaks or locker rooms



Office / Cabin

Meetings, one-on-one discussions, corridors, canteen



Work Travel / Transit

Company vehicles, client visits, official trips & stays



Events / Parties

Office parties, annual functions, award ceremonies



Online / Digital

WhatsApp, email, social media, video calls, group chats



Work From Home

Video meetings, online chats — POSH still applies!

Your Support System at the Workplace

ICC COMPOSITION

The ICC must have at least 4 members:

 **Presiding Officer** — Senior woman employee

 **2 Members** — Committed to women's issues

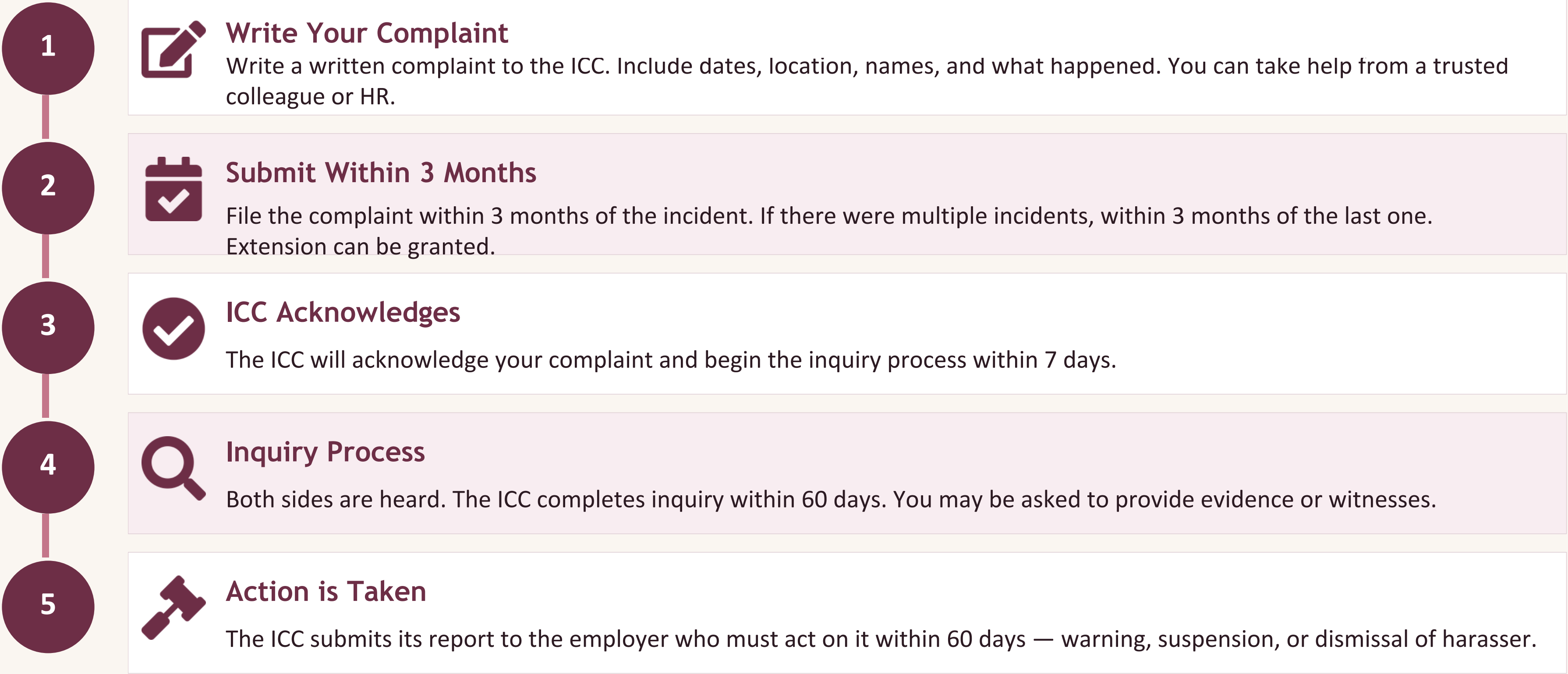
 **External Member** — NGO or legal expert familiar with women's rights

At least half the committee must be women.

HOW THE ICC HELPS YOU

- ◆ Receives and records your complaint safely
- ◆ Conducts a fair, unbiased inquiry
- ◆ Can grant interim relief (e.g., transfer of harasser)
- ◆ Ensures complete confidentiality
- ◆ Provides a safe hearing environment
- ◆ Submits action report to employer within 60 days

Step-by-Step: Your Path to Justice



You Are Safe When You Speak Up



Full Confidentiality

- ◆ Your name and identity will NOT be disclosed
- ◆ Complaint details are kept strictly private
- ◆ Violation of confidentiality is punishable by law



No Retaliation

- ◆ You cannot be fired, demoted or transferred for complaining
- ◆ Threatening or pressuring the complainant is a crime
- ◆ You can report retaliation as a separate complaint



Support During Process

- ◆ You may bring a trusted support person to hearings
- ◆ You can request interim relief (e.g. change in shift/workplace)
- ◆ Medical support or counseling can be requested
- ◆ The ICC must treat you with dignity throughout

Your courage to speak up will never put you in danger — the law protects you.

A Balanced Perspective



The POSH Act is designed to encourage reporting — not to silence women.

✓ Genuine Complaints Are Protected

- ◆ Don't fear — real complaints are fully protected
- ◆ 'Unable to prove' is NOT the same as 'false'
- ◆ The burden of proof is handled by ICC, not you
- ◆ You will NOT be penalized if inquiry finds no harassment

⚠ About Malicious Complaints

- ◆ Deliberately false complaints can face action
- ◆ This only applies if malicious intent is PROVEN
- ◆ This provision should NOT discourage genuine complainants
- ◆ When in doubt, always report — do not self-censor out of fear

What Your Company Is Legally Bound to Do



Constitute ICC

Form and maintain an Internal Complaints Committee with a female Presiding Officer



Display Notice

Display POSH policy and ICC details at visible locations in the workplace



Provide Training

Conduct regular awareness and sensitization sessions for all employees



Annual Report

Submit an annual report on complaints and outcomes to the District Officer



Assist in Inquiry

Provide all resources and assistance needed for inquiry proceedings



Take Action

Implement ICC recommendations — including dismissal if required — within 60 days

You Are Not Alone — Speak Up!



Right to a safe and harassment-free workplace



Right to file a complaint without fear of punishment



Right to complete privacy and confidentiality



Right to medical and counseling support



Right to fair inquiry and legal remedy



Right to bring a support person to hearings



Speak to your HR or ICC directly. Your first step is always the most important one.

Practical Workplace Behaviour Guide



DO's — Encouraged Behaviours

- ✓ Treat all colleagues with respect regardless of gender
- ✓ Speak up if you witness harassment — be an ally
- ✓ Report discomfort to ICC or HR without hesitation
- ✓ Keep workplace communication professional
- ✓ Attend POSH awareness sessions regularly
- ✓ Support colleagues who come forward with complaints



DON'Ts — Unacceptable Behaviours

- ✗ Make sexual comments, jokes or remarks
- ✗ Send inappropriate messages, images or videos
- ✗ Touch someone without their clear consent
- ✗ Stare, follow, or make someone feel unsafe
- ✗ Threaten or pressure someone for favors
- ✗ Dismiss a complaint as 'overreaction' or 'drama'

Your Voice Matters.

Your Safety is Non-Negotiable.

- ★ POSH is your legal right — know it, use it
- ★ Harassment in any form is never acceptable
- ★ Your ICC is here to help — not judge
- ★ Silence enables harassment; speaking up ends it
- ★ You are not alone — your workplace must support you



Thank You

for your attention and commitment to a safer workplace



*Every woman has the right to
work with dignity*



*Speak up, report, and support
one another*



*Together, we build a respectful
workplace*